

If you believe that a decision made by the department is unreasonable, there is a process in place by which you can ask for a review of that decision. [Read the relevant export legislation.](#)

If you have difficulty in accessing the legislation from our website, please contact us as soon as possible and request a hard copy.

It is your responsibility as an occupier of an export registered establishment and/or the holder of an approved arrangement to ensure that you have read the relevant parts of the legislation to fully understand your rights in requesting a review of a decision and the circumstances under which you are eligible to seek a review of a decision.

Reviewable decisions

Certain decisions under the Export Control Act 2020 and Export Control Rules may be reviewed internally and by the Administrative Appeals Tribunal.

Section 381 of the Export Control Act 2020 provides a complete list of reviewable decisions, the provisions under which the decision is made and the relevant person who, as the potentially effected party, may request a review of the decision.

Reconsideration and review process for decisions to suspend or revoke registration of a registered establishment, or to suspend or revoke all or part of an approved arrangement

If your interests are affected by a decision of the Secretary made under:

- Chapter 4 of the Export Control Act 2020 – Registered Establishments
- Chapter 5 of the Export Control Act 2020 – Approved arrangement

you can apply to the Secretary for a reconsideration of their initial decision. The reconsideration right is set out in Section 383 of the Export Control Act 2020.

Application for reconsideration by the Secretary for decisions to suspend or revoke registration of a registered establishment, or to suspend or revoke part of all of an approved arrangement

Your application for reconsideration by the Secretary of their initial decision must:

- be given to the Secretary within 30 days after the date you first receive notice of the Secretary's initial decision (or such further period as the Secretary allows);
- be in writing; and

- set out the reasons for the application. In the reasons you must be specific about which part or parts of the Secretary's initial decision you are asking to be reconsidered.

Applications for reconsideration by the Secretary should be sent to the Director, Dairy, Eggs and Fish Exports by e-mail to dairyeggfish@awe.gov.au or posted to GPO Box 858, Canberra, ACT, 2601.

You will be sent written notice of the Secretary's decision, and the reasons for that decision, within 90 days after the date on which the Secretary receives your application for reconsideration.

Application to the Administrative Appeals Tribunal (AAT)

If your interests are affected by the Secretary's decision following reconsideration of their initial decision, you may apply to the AAT for a review of the Secretary's decision. This review can only take place after the Secretary has reconsidered their initial decision.

Source: <https://www.agriculture.gov.au/biosecurity-trade/export/controlled-goods/dairy/review-dairy-2021>